

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, September 09, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
----------	---------------------

22CV-01155	Estate of Devonea Graham, et al. vs County of Merced, et al.
------------	--

Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required.

22CV-03955	Ryan Cardenas vs Warren Campbell, et al.
------------	--

Motion to Compel Compliance of Two Chairs Psychiatry and Therapy Services of California, P.C. with Subpoena for Business Records; Request for Contempt and Monetary Sanctions

The motion to compel compliance with the subpoena for business records is GRANTED.

Two Chairs Psychiatry and Therapy Services of California, P.C. are ordered to comply with the subpoena within fifteen (15) days of service of this Court's order.

The request for monetary sanctions is GRANTED.

Monetary sanctions in the amount of \$1,000 are to be paid by Two Chairs Psychiatry and Therapy Services of California, P.C. to Defendant within thirty (30) days of service of this Court's order.

Defendant is ordered to prepare a proposed order to be filed with this court within five (5) days.

24CV-03146 Carmelo Lorenzo vs 3K Farming Company, Inc., et al.

Motion for Summary Judgment

Defendant Kahlon Farming Management Company's ("KFMC") unopposed motion for summary judgment is GRANTED.

Upon consideration of all the evidence set forth in the moving papers, the Court finds that there is no triable issue of material fact and Defendant KFMC is entitled to judgment as a matter of law.

Defendant KFMC filed a separate statement of undisputed material facts, supported by admissible evidence, containing undisputed material facts that establish Plaintiffs' PAGA claims are time barred and Plaintiffs cannot prove the requisite control element to hold Defendant KFMC liable.

This shifts the burden to Plaintiffs to show the existence of one or more triable issues of material fact. (Code Civ. Proc. § 437c, subd. (p)(2).) By not filing any opposition, including a separate statement, Plaintiffs have failed to meet their burden on this motion.

Defendant KFMC is ordered to prepare and file a proposed order consistent with this order within five (5) days.

24CV-03375 Melesio Ortega vs Anthony Diaz, et al.

Status Conference

CONTINUED to November 4, 2026, pursuant to the declaration of Michael Huebner filed September 3, 2026. NO FURTHER CONTINUANCES WILL BE GRANTED without appearances. Default was entered on July 16, 2025. Since then, four continuances have been granted (this is now the fifth continuance) for counsel to gather documents necessary to Plaintiff's request for default judgment.

24CV-04618 Emmanuel Lozano vs Central Irrigation, Inc., et al.

Motion for Leave to Intervene

The unopposed motion for leave to intervene is GRANTED.

The Court will sign the order lodged on August 7, 2026.